

SOLVED PRACTICE WORKBOOK

Supreme Court - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Supreme Court REVISED TEACHING NAVIGATION - BASIC/COSE FIRST	
01. HISTORICAL TRANSITION AND THE INTEGRATED JUDICIARY Articles 124-127 establish the Supreme Court at the apex while	02. CONSTITUTIONAL LOCATION, COMPOSITION, SEAT AND BENCHES Article 124 creates the Court, Article 125 governs its seat and Article
03. APPOINTMENT ARCHITECTURE AND THE CJ CONVENTION Article 124 appointment text operates with the Judges Cases, the	04. THE JUDGES CASES, COLLEGIUM EVOLUTION AND NJAC The 1981, 1993 and 1998 decisions moved from executive primacy to
05. QUALIFICATIONS, OATH, TENURE, SALARY AND EXIT Articles 124(2)-(5), 125 and 146 govern eligibility, oath, tenure,	06. CONSTITUTIONAL SAFEGUARDS OF JUDICIAL INDEPENDENCE Tenure, transfer specifications, protected service conditions, Article
07. ACCOUNTABILITY, ETHICS AND THE IN-HOUSE PROCESS Article 128(6) removal concerns with non-statutory in-house inquiry	08. MASTER JURISDICTION MAP Articles 32 and 131-137 create original, writ, appellate, special leave
09. ORIGINAL JURISDICTION UNDER ARTICLE 131 Its exclusive original jurisdiction requires constitutionally listed	10. ARTICLE 32, THE FIVE WRITS AND ARTICLE 226 COMPARISON The five prerogatives with operate through distinct modalities
11. APPELLATE JURISDICTION: ARTICLES 132-136 Articles 132-134 create conferral constitutional, civil and criminal	12. ADVISORY JURISDICTION UNDER ARTICLE 143 Article 143(2) permits reference of a question of law or fact of public
13. REVIEW UNDER ARTICLE 137 AND THE CURATIVE PETITION Article 137 sets Supreme Court rules govern review; Rupa Ashok Hurai	14. COURT OF RECORD AND CONTEMPT UNDER ARTICLE 129 Article 129 operationalises record status and contempt powers, while
15. ARTICLES 141, 142, 144 AND 145 Article 141 binds all courts to law declared; Article 142 enables	16. ACTING, AD HOC AND RETIRED JUDGES Articles 126, 127 and 128 separately govern an acting CJ, ad hoc judge
17. JUDICIAL REVIEW, BASIC STRUCTURE AND THE NINTH SCHEDULE Article 15, 32 and fundamental rights scheme support review	18. TRIBUNALS AND THE BASIC-STRUCTURE FLOOR J. Chandrababu Naidu (1983) held that High Court review under Articles
19. PIL, LOCUS STANDI, EPISTOLARY JURISDICTION AND CONTINUING MANDAMUS PIL developed through representative standing, letter petitions and	20. JUDICIAL ACTIVISM, RESTRAINT AND JUDICIAL LEGISLATION Judicial legislation is defensible in rights-based, temporary gap-filling
21. ENVIRONMENTAL CONSTITUTIONALISM The Supreme Court connected Article 21 with Articles 48A and 51A(g)	22. WOMEN AND DIVERSITY IN THE HIGHER JUDICIARY Equality under Article 14-16 informs diversity-aware pipeline and
23. INDIA AND THE UNITED KINGDOM: JUDICIAL SYSTEMS India combines constitutional supremacy and strong from judicial	24. INDIA AND THE USA: APPOINTMENTS AND JUDICIAL POWER India uses collegium-led recommendation and retirement at 65; for
25. ADVOCATES ACT, BAR COUNCIL AND PROFESSIONAL REGULATION The Advocates Act, 1961, assign-empowerment to State Bar Councils and	26. PENDENCY, ACCESS TO JUSTICE AND E-COURTS REFORM Judicial capacity, precedents, legal aid, case management

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 18 - Supreme Court - Complete Topic Package

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Integrated judiciary

Which statement best describes India's judicial structure?

A. A single integrated hierarchy administers both Union and State law. B. Separate federal and State court systems end in different apex courts. C. State law cannot be interpreted by the Supreme Court. D. High Courts are administrative branches of the Supreme Court.

Answer: A. [FACT] India uses one integrated hierarchy, unlike the USA's dual federal-State court structure. [LIMIT] High Courts retain constitutionally protected powers and are not branches of the Supreme Court.

OM2. Seat of the Supreme Court

Under Article 130, the Supreme Court:

A. must hold one annual sitting in every State capital. B. sits in Delhi, but the CJI may appoint another place with the President's approval. C. must sit only in Delhi in all circumstances. D. may shift permanently by a resolution of the collegium alone.

Answer: B. [FACT] Delhi is the seat; another place requires action by the CJI with presidential approval.

OM3. Constitution Bench

Which proposition is correct under Article 145(3)?

A. Every Fundamental Rights case requires seven judges. B. A Constitution Bench must include every available Supreme Court judge. C. A substantial constitutional-interpretation question requires a bench of at least five judges. D. Every appeal from a High Court requires five judges.

Answer: C. [FACT] Five is the constitutional minimum for the specified questions and Article 143 references.

OM4. Qualification

Which person may qualify for appointment as a Supreme Court judge under the Constitution?

A. Any advocate with five years of practice in any court B. Any district judge with three years of service C. A non-citizen with twenty years of comparative-law teaching D. A distinguished jurist in the President's opinion who is an Indian citizen

Answer: D. [FACT] Distinguished jurist is an express Supreme Court eligibility route; no minimum appointment age is prescribed.

OM5. CJI convention

The practice of appointing the senior-most Supreme Court judge as CJI is:

A. a constitutional convention rather than an express Article 124 rule. B. a requirement introduced by the 99th Amendment. C. decided by a vote of all High Court Chief Justices. D. mandated by the Judges (Inquiry) Act, 1968.

Answer: A. [FACT] Seniority is a convention, historically broken in 1973 and 1977.

OM6. Third Judges Case

For appointments to the Supreme Court, the Third Judges Case framework uses:

A. CJI alone B. CJI plus four senior-most Supreme Court judges C. Law Minister plus CJI plus Leader of Opposition D. CJI plus two senior-most High Court Chief Justices

Answer: B. [FACT] The 1998 Presidential Reference established plurality through the CJI plus four senior-most judges.

OM7. NJAC

Which statement correctly describes the NJAC episode?

A. The NJAC replaced judicial review of appointments permanently. B. The NJAC judgment held that no appointment commission can ever be constitutional. C. The 99th Amendment and NJAC Act were struck down in 2015 on judicial-independence/basic-structure grounds. D. The NJAC was only an executive order.

Answer: C. [FACT] The specific design was invalidated. [LIMIT] The holding should not be converted into a ban on every possible commission model.

OM8. Removal notice

Under the Judges (Inquiry) Act route, the correct notice threshold is:

A. 50 Lok Sabha or 25 Rajya Sabha members B. 75 Lok Sabha or 40 Rajya Sabha members C. 100 members of either House D. 100 Lok Sabha or 50 Rajya Sabha members

Answer: D. [FACT] These thresholds start the parliamentary inquiry process; admission by the presiding officer is not automatic.

OM9. Original jurisdiction

Article 131 principally concerns:

A. legal-right disputes between constitutionally specified Union and State parties. B. private commercial disputes involving a public-sector company. C. appeals from every inter-State river tribunal. D. election petitions concerning all legislators.

Answer: A. [FACT] The parties and legal-right requirement make Article 131 a federal, not general, original jurisdiction.

OM10. Article 32 and Article 226

Which is correct?

A. Article 32 is territorial while Article 226 is national. B. Article 226 is wider in purpose because it reaches Fundamental Rights and other legal rights. C. Article 32 reaches every legal right, while Article 226 reaches only Fundamental Rights. D. Neither jurisdiction forms part of the basic structure.

Answer: B. [FACT] Article 32 is itself a Fundamental Right but is narrower in subject matter.

OM11. Writ of Prohibition

Prohibition is best described as:

A. a remedy quashing a completed administrative order. B. a challenge to an unlawful occupant of public office. C. a preventive order stopping a lower court or tribunal from exceeding jurisdiction. D. a command to release an unlawfully detained person.

Answer: C. [FACT] Prohibition acts before completion; certiorari is the classic quashing remedy.

OM12. Article 136

Special leave under Article 136:

A. applies only to civil cases. B. is issued by the President on judicial advice. C. is an automatic right after every High Court judgment. D. is discretionary and excludes courts or tribunals under Armed-Forces law.

Answer: D. [FACT] SLP is exceptional, plenary and discretionary, with the express Armed-Forces exclusion.

OM13. Advisory jurisdiction

Which statement is correct?

A. An Article 143 advisory opinion is not binding like an ordinary judgment. B. Every public-importance reference must be answered under Article 143(1). C. Advisory jurisdiction creates a private right of appeal. D. Only Parliament can send a reference to the Court.

Answer: A. [FACT] The President refers; under Article 143(1) the Court may report its opinion.

OM14. Review

Article 137:

A. converts every rejected SLP into a review petition. B. permits the Supreme Court to review its own judgments or orders subject to law and rules. C. abolishes finality of judgments. D. gives High Courts power to review Supreme

Court judgments.

Answer: B. [FACT] Review is a narrow self-correction mechanism, not a fresh appeal.

OM15. Curative petition

The curative petition is associated with:

A. *Kesavananda Bharati* and amendment review B. *S.P. Gupta* and locus standi C. *Rupa Ashok Hurra* and prevention of gross miscarriage after review D. *Vishaka* and interim workplace norms

Answer: C. [FACT] The curative jurisdiction is extraordinary and follows dismissal of review.

OM16. Contempt

Which statement is constitutionally sound?

A. The Contempt of Courts Act creates the Supreme Court's entire contempt jurisdiction. B. Parliament may abolish Article 129 power by ordinary law. C. Fair criticism of a judgment automatically constitutes criminal contempt. D. The 1971 Act regulates contempt but cannot cut down the Court's constitutional power.

Answer: D. [FACT] Article 129 is the constitutional source; free expression and fair criticism remain relevant limits.

OM17. Article 141

Under Article 141:

A. the law declared by the Supreme Court binds all courts in India. B. every factual sentence in every order is binding law. C. a two-judge bench may overrule a five-judge bench. D. Parliament is bound as if every judgment were a constitutional amendment.

Answer: A. [FACT] The binding rule is the ratio, read with bench-strength discipline.

OM18. Article 142

Which formula most accurately states the limit on Article 142?

A. It authorises the Court to enact permanent codes. B. It supplements existing law but cannot supplant substantive law or violate Fundamental Rights. C. It is available only in advisory references. D. It can override any statute whenever equity requires.

Answer: B. [FACT] Prem Chand Garg and SCBA supply the two hard limits.

OM19. Article 144

Article 144 requires:

A. the Supreme Court to seek executive permission before contempt action. B. Parliament to approve every Supreme Court order. C. all civil and judicial authorities in India to act in aid of the Supreme Court. D. only subordinate courts to follow Supreme Court procedure.

Answer: C. [FACT] Article 144 provides the cooperation bridge for implementation.

OM20. Article 145

Which statement is correct?

A. Article 145 abolishes dissenting opinions. B. Article 145 fixes the Court's sanctioned strength. C. Supreme Court Rules need approval of all High Courts. D. Article 145 supports Court-made procedural rules and the five-judge constitutional minimum.

Answer: D. [FACT] Strength is statutory under Article 124 architecture; procedure and Constitution Bench rules lie in Article 145.

OM21. Retired judge sitting

Article 128 permits:

A. the CJI, with required presidential and personal consent, to request an eligible retired judge to sit and act in the Supreme Court. B. any retired judge to resume office unilaterally. C. Parliament to appoint retired judges for life. D. a Governor to nominate an ad hoc Supreme Court judge.

Answer: A. [FACT] The request mechanism is consent-based and temporary.

OM22. Post-retirement practice

Article 124(7) provides that a former Supreme Court judge:

A. cannot hold any public office whatsoever. B. cannot plead or act before any court or authority within India. C. cannot write or teach law. D. automatically becomes a Rajya Sabha member.

Answer: B. [FACT] The text is a practice bar, not a complete ban on every post-retirement role.

OM23. Ninth Schedule

Which is the correct post-*I.R. Coelho* proposition?

A. Every law inserted after 1973 is automatically void. B. Every Ninth Schedule law is immune from all review. C. Post-24 April 1973 insertions are reviewable for rights impact damaging basic structure. D. Only the President may test Ninth Schedule laws.

Answer: C. [FACT] Reviewability and invalidity are different stages.

OM24. Tribunals

After *L. Chandra Kumar*:

A. only the Supreme Court can review tribunal decisions. B. every tribunal was abolished. C. tribunal decisions are final and immune from constitutional courts. D. tribunal decisions remain reviewable by a High Court Division Bench under Articles 226/227.

Answer: D. [FACT] Tribunals supplement but cannot supplant constitutional review.

OM25. PIL standing

The defining access innovation of PIL was:

A. relaxation of locus standi for representation of those unable to approach the court. B. replacement of evidence with public opinion. C. mandatory admission of every letter. D. abolition of the need for a legal injury.

Answer: A. [FACT] Standing was relaxed, not erased; courts still screen bona fides and legal injury.

OM26. Continuing mandamus

Continuing mandamus means:

A. permanent invalidation of Parliament's legislative power. B. retaining a case and requiring periodic compliance with judicial directions. C. issuing only a declaratory judgment. D. transferring every PIL to an executive commission.

Answer: B. [FACT] It converts one-time adjudication into monitored implementation, with corresponding overreach risks.

OM27. Judicial legislation

Why is *Vishaka* a defensible example of judicial legislation?

A. It held that separation of powers does not exist. B. It relied only on Article 142 against a complete statute. C. It framed interim rights-protective norms in a vacuum until Parliament enacted the 2013 law. D. It permanently prevented Parliament from legislating.

Answer: C. [FACT] The temporary and rights-linked design is central to its legitimacy.

OM28. Judicial restraint

Judicial restraint most accurately means:

A. abandoning judicial review of legislation. B. refusing to enforce Fundamental Rights. C. accepting every government claim as conclusive. D. respecting institutional competence and democratic choice while still enforcing constitutional limits.

Answer: D. [ANALYSIS] Restraint is disciplined review, not judicial surrender.

OM29. Environmental constitutionalism

Which constitutional combination anchors the Supreme Court's environmental-rights line?

A. Articles 21, 48A and 51A(g) B. Articles 110, 112 and 114 C. Articles 324, 325 and 326 D. Articles 72, 123 and 356

Answer: A. [FACT] Life, State environmental duty and citizen duty form the principal constitutional chain.

OM30. India-UK comparison

The sharpest judicial-system divergence is that:

A. UK courts cannot review executive action. B. Indian courts may invalidate unconstitutional legislation, while UK courts ordinarily cannot invalidate a Westminster Act. C. India has parliamentary sovereignty identical to the UK. D. the UK has no courts using precedent.

Answer: B. [FACT] Both systems use precedent and executive review; legal sovereignty differs.

OM31. India-USA appointments

Which pairing is correct?

A. India: Senate confirmation; USA: collegium B. Both systems constitutionally require public legislative hearings C. India: collegium recommendation; USA: presidential nomination and Senate confirmation D. India: life tenure; USA: retirement at 65

Answer: C. [FACT] The systems embody different independence-accountability trade-offs.

OM32. Bar Council of India

The Bar Council of India is:

A. an executive department of the Supreme Court. B. a private association with no statutory powers. C. a constitutional court under Article 129. D. a statutory body under the Advocates Act, 1961.

Answer: D. [FACT] State Bar Councils enrol; the BCI performs national statutory regulatory functions.

OM33. Current strength caution

Which statement is safe as of the package control date?

A. The sanctioned Supreme Court strength is 34 including the CJI, but working strength should be separately verified. B. The Constitution permanently fixes exactly 34 judges. C. Vacancy figures never change during a year. D. Sanctioned and working strength are always identical.

Answer: A. [CURRENT] The sanctioned total is stable; filled positions are live data.

OM34. e-Courts reform

Which reform principle is strongest?

A. Hybrid hearings eliminate the need for High Courts. B. Technology should reduce transaction costs while preserving assisted access, privacy and cybersecurity. C. Pendency can be solved by dashboards without judges or case management. D. Digital-only filing should replace every physical access channel.

Answer: B. [ANALYSIS] Digital reform must be capacity-enhancing and inclusion-sensitive.

OM35. Current CJI

As controlled to 17 August 2026, the Chief Justice of India is:

A. Justice B.R. Gavai B. Justice Sanjiv Khanna C. Justice Surya Kant D. Justice D.Y. Chandrachud

Answer: C. [CURRENT] Justice Surya Kant took office on 24 November 2025. [LIMIT] Officeholder trivia should not displace doctrine.

OM36. Current assent opinion

The narrow position in the 20 November 2025 Article 143 opinion is that:

A. Article 142 may always create deemed assent. B. the opinion formally overruled the April 2025 judgment. C. all assent decisions are immune from review. D. rigid court-made timelines and deemed assent were rejected, while prolonged unexplained inaction remains reviewable.

Answer: D. [CURRENT] The opinion is advisory and non-binding; its use must remain issue-specific.

Remedial MCQs - strict A -> A -> B -> D rotation

RM1. Removal terminology

Which expression is technically accurate in constitutional writing?

- A. Removal of a Supreme Court judge under Article 124(4) B. Judicial no-confidence motion C. Presidential recall of a judge D. Automatic impeachment after inquiry

Answer: A. [FACT] "Impeachment" is common usage, but the Constitution prescribes removal.

RM2. Writ width

Why is Article 226 described as wider than Article 32?

- A. It permits High Courts to overrule the Supreme Court. B. It reaches Fundamental Rights and other legal rights/public duties. C. It binds foreign courts. D. It has no territorial limit.

Answer: B. [FACT] Width refers to purpose, not reach.

RM3. Prohibition-certiorari trap

Which distinction is correct?

- A. Certiorari is always preventive and prohibition always corrective. B. Neither can be issued to a tribunal. C. Prohibition stops a jurisdictional wrong; certiorari quashes an order already made. D. Both writs challenge occupation of public office.

Answer: C. [FACT] Timing and remedial operation distinguish the pair.

RM4. Article 142 trap

Article 142:

- A. allows automatic deemed assent whenever delay occurs. B. supplies unlimited legislative competence. C. overrides Fundamental Rights in exceptional cases. D. is supplementary and cannot supplant substantive law.

Answer: D. [FACT] SCBA supplies the controlling phrase.

RM5. Advisory-opinion trap

An Article 143 opinion:

- A. is advisory and not binding like an ordinary judgment. B. must always be unanimous. C. can be requested by any private citizen. D. is a constitutional amendment.

Answer: A. [FACT] Authoritative reasoning and binding adjudication must be distinguished.

RM6. Constitution Bench trap

The minimum bench under Article 145(3) is:

- A. seven judges for every Fundamental Right case. B. five judges for a substantial constitutional-interpretation question or Article 143 reference. C. nine judges for every review petition. D. three judges for every constitutional petition.

Answer: B. [FACT] Five is a minimum, not a universal constitutional-case size.

RM7. Retired-judge trap

Which pairing is correct?

- A. Article 124(7) lets former SC judges practise in High Courts. B. Article 128 bars all retired judges from public service. C. Article 128 permits requested sitting; Article 124(7) bars later pleading or acting before courts/authorities. D. Article 224A appoints the CJI.

Answer: C. [FACT] Temporary judicial service and the practice bar answer different questions.

RM8. Tribunal trap

Which statement follows *L. Chandra Kumar*?

- A. Tribunal expertise makes judicial independence irrelevant. B. Tribunals replace High Courts entirely. C. Article 32 can be repealed by tribunal legislation. D. Tribunal decisions remain subject to High Court constitutional review.

Answer: D. [FACT] Review is the basic-structure floor.

RM9. Ninth Schedule trap

Which statement is correct?

A. Post-24 April 1973 Ninth Schedule insertions are reviewable, not automatically invalid. B. *I.R. Coelho* abolished the Ninth Schedule. C. All pre-1973 laws were declared unconstitutional. D. Article 31B was inserted by the 42nd Amendment.

Answer: A. [FACT] The Court applies an impact-on-basic-structure test.

RM10. Contempt trap

The best constitutional formulation is:

A. The 1971 Act alone creates contempt power. B. Article 129 confers constitutional power; statute regulates without cutting it down. C. Fair criticism is automatically contempt. D. Truth can never be considered.

Answer: B. [FACT] Power, regulation and free-expression limits must be held together.

RM11. Collegium trap

The Supreme Court collegium is:

A. expressly listed in Article 124. B. a statutory body under the Advocates Act. C. a judicially developed mechanism shaped by the Second and Third Judges Cases. D. identical to the invalidated NJAC.

Answer: C. [FACT] Judicial creation is the precise status.

RM12. Current-control trap

Which present-tense statement should be avoided without fresh verification?

A. Article 145(3) requires at least five judges in specified cases. B. Supreme Court judges retire at 65. C. Sanctioned strength is 34 including the CJI. D. The exact working strength, vacancy count or pendency total is fixed and current.

Answer: D. [LIMIT] Working strength and pendency are live variables.

PYQS AND ANSWER PRACTICE

27. Answer-writing architecture

Visual 42 - Mandatory examiner-grade spine

CLAIM
answer the directive directly
|
NAMED EVIDENCE
Article / case / statute / dated official control
|
ANALYSIS
explain mechanism, consequence and significance
|
QUALIFICATION
counterpoint, institutional limit or status caution
|
VERDICT
graded answer to the exact demand

Directive fidelity

Directive	Required operation	Common failure
Discuss	Cover major dimensions with balance	A case-law list
Explain	Show how or why the mechanism works	Definitions without causation
Comment	State and defend a compact judgment	Neutral description
Justify	Establish the proposition, then set limits	One-sided praise
Critically examine	Test advantages, defects and comparison	Separate unconnected pros/cons

Directive	Required operation	Common failure
Evaluate	Apply criteria and give a degree-based verdict	No final judgment

Mark-scaled evidence load

Marks/words	Architecture	Named evidence target
10 / 150	Thesis -> 2-3 mechanisms -> one qualification -> verdict	2-3 precise Articles/cases
15 / 250	Thesis -> 4-5 dimensions -> counterpoint -> reform/verdict	4-6 named units
20 / 250	Constitutional design -> doctrine -> consequences -> criticism -> reform -> graded verdict	5-8 named units

Reusable answer spines

- **Independence:** Articles 121/124/125/129/146 -> basic structure -> collegium -> accountability gap -> transparent independence.
- **PIL/power:** relaxed locus -> epistolary route -> continuing mandamus -> Article 141/142 reach -> compliance/overreach limits.
- **Collegium:** Article 124 text -> First/Second/Third Judges Cases -> NJAC -> opacity versus capture -> reform.
- **Article 142:** text -> *Prem Chand Garg* -> *SCBA* -> useful remedy -> 2025 assent qualification -> supplement-not-supplant verdict.
- **Environment:** Articles 21/48A/51A(g) -> case line -> continuing mandamus -> regulator dependence -> constitutionalisation verdict.
- **Comparative:** shared function -> structural divergence -> consequence -> risk in each model -> no mechanical transplant.

Workbook boundary: This section contains solved PYQ demands, routed Prelims doctrine, original MCQs, remedial MCQs and solved Mains practice. The separate final register notes begin at the later H2 and are not part of the workbook.

Solved routed Mains PYQ demands

Wording rule: Neutral demand wording is used because the authoritative Core provides routes rather than verified verbatim stems. No unverified quotation is presented as exact UPSC wording.

PYQ-M1. 2020 GS-II Q4 - Convergence and divergence of Indian and UK judicial systems

Demand decoding

- "Highlight key points" requires compact comparison, not two separate country descriptions.
- **10 marks | 150 words:** use common method, constitutional divergence and one consequence.

Model answer

Claim: Indian and UK judicial systems share a common-law method but operate under opposite locations of legal sovereignty.

Named evidence: Both use precedent, reasoned judgments, open courts and judicial review of executive legality. India's **Articles 32, 131-136 and 141** place a constitutional and appellate Supreme Court atop an integrated hierarchy. It may invalidate legislation and, under **Kesavananda Bharati (1973)**, constitutional amendments damaging basic structure. The UK Supreme Court is an independent apex court within the UK's distinct legal systems, but parliamentary sovereignty means it ordinarily cannot nullify a Westminster Act; a Human Rights Act declaration of incompatibility does not itself invalidate legislation.

Analysis: Thus convergence lies in adjudicatory craft and rule-of-law control, while divergence lies in constitutional supremacy versus parliamentary sovereignty.

Qualification: UK courts remain powerful in statutory interpretation, common law and executive review; their inability to strike primary legislation does not imply institutional weakness.

Verdict: India has strong-form constitutional review; the UK combines judicial independence with legislative legal supremacy.

Examiner note: The comparison is dimension-based and avoids calling the UK Constitution “unwritten”.

Mark/word discipline: 10 marks; target 145-155 words; 3 comparative dimensions and one qualification.

Why this earns marks: The answer compares legal sovereignty by dimensions, uses the correct UK qualification and closes with a precise strong-form-review distinction.

How to improve this answer: In 150 words retain precedent, constitutional supremacy versus parliamentary sovereignty, one Human Rights Act qualification and the final contrast; omit institutional history.

PYQ-M2. 2020 GS-II Q12 - Judicial legislation, separation of powers and public-interest petitions

Demand decoding

- “Justify” requires a defence of bounded gap-filling, followed by the constitutional limit.
- **15 marks | 250 words:** define judicial legislation, explain PIL as vehicle, use at least four named anchors.

Model answer

Claim: Judicial legislation is justified in India when it temporarily fills a rights-threatening legal vacuum; it becomes illegitimate when it substitutes the Court for Parliament.

Named evidence: Articles **32** and **226** empower constitutional remedies, while Article **141** gives binding force to law declared. Relaxed locus standi in **S.P. Gupta (1981)** allowed public-spirited litigants to represent those unable to approach courts. In **Vishaka v. State of Rajasthan (1997)**, the Supreme Court framed workplace-sexual-harassment guidelines from Articles 14, 15, 19 and 21 and CEDAW, expressly operating until legislation. Parliament's **2013 Act** then occupied the field. Continuing mandamus in **Vineet Narain (1998)** demonstrates how PIL can secure implementation.

Analysis: India's functional separation of powers permits limited overlap where judicial inaction would leave Fundamental Rights without remedy. PIL supplies access; Articles 141/142 supply effective relief.

Qualification: **Supreme Court Bar Association (1998)** holds that Article 142 supplements but cannot supplant substantive law. Courts lack legislative fact-finding and democratic accountability, and open-ended supervision can become governance.

Verdict: Judicial legislation is a constitutional bridge across an exceptional vacuum, not a permanent judicial seat in the legislature.

Examiner note: The answer justifies rather than merely describes, and the 2013 statute proves the temporary nature of the bridge.

Mark/word discipline: 15 marks; target 230-250 words; 5 named units, one mechanism and one hard limit.

Why this earns marks: It defines bounded judicial legislation, links PIL to the remedial mechanism and proves the limit through Vishaka, the 2013 Act and SCBA.

How to improve this answer: Compress around legal vacuum, Articles 32/141, Vishaka and SCBA; explicitly state that statutory enactment displaces the interim judicial norm.

PYQ-M3. 2021 GS-II Q2 - Desirability of greater representation of women in the higher judiciary

Demand decoding

- “Discuss desirability” requires reasons, constraints and a non-tokenistic route.
- **10 marks | 150 words:** equality anchor, legitimacy analysis, pipeline qualification.

Model answer

Claim: Greater representation of women in the higher judiciary is desirable because equality in public institutions strengthens both adjudicatory perspective and democratic legitimacy.

Named evidence: Articles 14, 15 and 16 express the equality commitment. **Justice M. Fathima Beevi** became the first woman Supreme Court judge in **1989**, demonstrating how recent the opening of the apex bench was. A more diverse bench can improve institutional trust, widen deliberative experience and create role models across the Bar and judicial service.

Analysis: “Merit” is produced through access to briefs, senior designation, leadership and visibility. If those pipelines are unequal, formally neutral appointment may reproduce exclusion.

Qualification: Identity does not predetermine a judicial view, and diversity cannot replace competence. Current percentages should not be cited without dated official verification.

Verdict: Reform should widen the feeder pool, publish diversity-aware selection criteria and ensure fair professional opportunity, making representation a component of merit rather than tokenism.

Examiner note: The answer links representation to institutional design and avoids unsupported current numbers.

Mark/word discipline: 10 marks; target 145-155 words; 2 constitutional anchors, one historical fact and one pipeline reform.

Why this earns marks: Equality text, one historical anchor, pipeline analysis and a non-tokenistic reform directly answer desirability rather than merely listing low representation.

How to improve this answer: For 150 words retain Articles 14-16, Fathima Beevi, pipeline inequality and transparent diversity-aware criteria; avoid undated percentages.

PYQ-M4. 2022 GS-II Q1 - Constitutionalisation of environmental problems by the Supreme Court

Demand decoding

- “Discuss with case laws” makes cases the analytical evidence, not decorative names.
- **10 marks | 150 words:** constitutional text, three doctrinal innovations, implementation limit.

Model answer

Claim: The Supreme Court constitutionalised environmental problems by converting ecological welfare from a policy objective into an enforceable dimension of life and dignity.

Named evidence: It read **Article 21** with **Articles 48A and 51A(g)**. **Subhash Kumar (1991)** recognised a pollution-free environment within Article 21. **M.C. Mehta (Oleum Gas Leak, 1987)** evolved absolute liability for hazardous enterprises. **Vellore Citizens (1996)** incorporated precaution, polluter pays and sustainable development; **M.C. Mehta v. Kamal Nath (1997)** applied public trust. **T.N. Godavarman (1996 onward)** used continuing mandamus in forest governance.

Analysis: Rights language enabled standing, judicial review and effective remedies where regulatory failure threatened health and livelihood.

Qualification: Principles require scientific application, and long supervision risks judicial administration. CPCB, State boards, governments and the NGT remain indispensable.

Verdict: Constitutionalisation transformed environmental accountability, but durable protection requires courts to catalyse rather than replace regulators.

Examiner note: Each case is attached to an exact proposition and followed by an institutional limit.

Mark/word discipline: 10 marks; target 145-155 words; 4-5 cases, no case catalogue without analysis.

Why this earns marks: Every environmental case is tied to a doctrine, followed by regulator dependence and an institutional-restraint verdict.

How to improve this answer: Keep Article 21 with Articles 48A/51A(g), three doctrine-case pairs and the regulator limit; cut the longer case catalogue first.

PYQ-M5. 2023 GS-II Q1 - Judicial independence as a prerequisite of democracy

Demand decoding

- “Comment” requires a clear judgment on necessity, then a qualification.
- **10 marks | 150 words:** explain democratic function, safeguards and accountability.

Model answer

Claim: Judicial independence is a necessary, though not sufficient, condition of constitutional democracy because rights and limits are meaningful only when adjudicated without political fear.

Named evidence: Article 32 protects Fundamental Rights; Article 131 provides a neutral federal umpire. Security of tenure under Article 124(4), protected service conditions under Article 125, restraint on parliamentary discussion under Article 121, contempt authority under Article 129 and charged expenses under Article 146 reduce retaliation. **Kesavananda Bharati (1973)** and the **NJAC judgment (2015)** connect judicial review and independence to basic structure.

Analysis: These safeguards preserve electoral competition, minority rights, federal balance and legality of government.

Qualification: Independence is functional, not immunity. Collegium opacity, recusal, ethics and the gap below removal require transparent accountability.

Verdict: Democracy needs judges independent in deciding and accountable in institutional process; either value without the other damages constitutional trust.

Examiner note: The answer proves why independence matters instead of listing safeguards alone.

Mark/word discipline: 10 marks; target 145-155 words; 3-4 Articles, 2 cases and one accountability qualification.

Why this earns marks: The answer explains democratic function, names structural safeguards and qualifies independence with accountability instead of treating it as judicial privilege.

How to improve this answer: Use Article 32, Article 124(4), Article 121 and the NJAC/basic-structure anchor; add one sentence distinguishing decisional independence from institutional opacity.

PYQ-M6. 2024 GS-II Q14 - Growth of PIL and emergence of a powerful Supreme Court

Demand decoding

- "Explain reasons" and assess power: separate causes of PIL growth from the power verdict.
- **15 marks | 250 words:** origins, remedial instruments, examples, counter-power and qualified judgment.

Model answer

Claim: PIL transformed the Supreme Court into one of the world's most powerful constitutional courts, but the power remains legally bounded and operationally dependent.

Growth evidence: Post-Emergency rights consciousness, relaxed locus standi in **S.P. Gupta (1981)**, epistolary jurisdiction, low-cost Articles 32/226 access and executive/legislative failure opened the Court to prisoners, bonded labourers and vulnerable communities. **Hussainara Khatoon (1979)** advanced speedy-trial rights; **Vineet Narain (1998)** used continuing mandamus.

Power analysis: PIL combines a broad door with exceptional tools: Article 141 precedent, Article 142 complete justice, Article 129 contempt and basic-structure review of constitutional amendments. Environmental and governance cases therefore produce nationwide norms and monitored remedies.

Qualification: The Court has neither purse nor enforcement service and relies on Article 144 aid. Frivolous petitions, docket displacement and prolonged policy supervision invite an overreach critique. Article 142 cannot violate Fundamental Rights or supplant substantive law.

Verdict: PIL made the Court unusually powerful in rights access and remedy, not sovereign. Its legitimacy depends on evidence, administrable relief, institutional competence and an exit from governance.

Examiner note: "Powerful" is assessed through sources and limits rather than asserted rhetorically.

Mark/word discipline: 15 marks; target 230-250 words; 5 power units, 3 growth causes and 3 limits.

Why this earns marks: It separates causes of PIL growth from sources of judicial power and tests the "most powerful" claim against enforcement and overreach limits.

How to improve this answer: In 250 words use two short subheadings-growth and power-then retain Article 144 dependence and an administrable-remedy conclusion.

PYQ-M7. 2025 GS-II Q11 - Constitutional morality, judicial independence and accountability

Demand decoding

- “Explain” requires defining constitutional morality and applying it to both independence and accountability.
- **15 marks | 250 words:** values, safeguards, accountability gap and synthesis.

Model answer

Claim: Constitutional morality reconciles judicial independence and accountability by demanding fidelity to constitutional role rather than loyalty to either government or corporate judicial interest.

Named evidence: Constitutional morality prioritises rule of law, equality, due process and checks and balances; it was invoked in the Constituent Assembly and developed judicially in cases including **Navtej Singh Johar (2018)** and **Government of NCT of Delhi v. Union of India (2018)**. Independence is secured through Articles **121, 124(4), 125, 129 and 146**, and protected as basic structure in the **NJAC judgment**.

Analysis: These safeguards allow judges to invalidate unlawful majoritarian action. The same morality requires reasoned judgments, consistent recusal, transparent selection criteria, ethical disclosure and fair complaint handling.

Qualification: Removal is an extreme remedy never successfully used against a Supreme Court judge. The **1997 Restatement** and **1999 in-house procedure** are non-statutory, while the **2010 accountability Bill lapsed**. Accountability must not become executive intimidation.

Verdict: Constitutional morality means independence in what a judge decides and accountability in how judicial office is constituted and exercised.

Examiner note: The concept is operationalised through institutions rather than left as an abstract value.

Mark/word discipline: 15 marks; target 230-250 words; definition, 5 safeguards, 4 accountability tools and one warning.

Why this earns marks: The abstract idea of constitutional morality is operationalised through safeguards, ethical process and the gap between in-house correction and removal.

How to improve this answer: Retain a one-line definition, three independence safeguards, three accountability practices and the warning against executive intimidation; drop peripheral case names if compressed.

PYQ-M8. 2025 GS-II Q13 - Collegium evolution and India-USA appointment systems

Demand decoding

- “Critically examine” requires evolution, comparative advantages/disadvantages and a reform verdict.
- **15 marks | 250 words:** do not narrate the Judges Cases without comparison.

Model answer

Claim: India secures judicial insulation at the cost of transparency, while the USA secures visible inter-branch accountability at the cost of partisan politicisation.

Indian evolution: Article **124** uses consultation. **S.P. Gupta (1981)** favoured executive primacy; the **Second Judges Case (1993)** converted consultation into concurrence and created the collegium; the **1998 Presidential Reference** fixed the Supreme Court collegium at the CJI plus four senior-most judges. The **99th Amendment/NJAC Act** were struck down in **2015** for damaging judicial independence.

India analysis: Judicial primacy limits executive capture and protects basic structure, but opaque criteria, no confirmation hearing, delay and perceived favouritism weaken legitimacy.

USA evidence: The President nominates and the Senate confirms; public hearings expose philosophy and record, while Article III tenure during good behaviour protects later adjudication. Yet partisan voting and ideological vacancies can politicise the Court.

Qualification: Neither system can be transplanted without its wider separation-of-powers context.

Verdict: India should retain decisional insulation while adding a permanent secretariat, published criteria, reasoned resolutions, diversity monitoring and reciprocal processing discipline.

Examiner note: The answer compares institutional trade-offs and ends with India-specific reform, not model shopping.

Mark/word discipline: 15 marks; target 230-250 words; 4 evolution stages, 3 advantages/risks per system and a reform verdict.

Why this earns marks: The answer fulfils every limb: doctrinal evolution, India-USA comparison, costs and a reform verdict grounded in accountable independence.

How to improve this answer: Use a four-stage Judges Cases timeline and a two-column trade-off; preserve the non-transplant qualification and prioritise secretariat, criteria and reasoned resolutions.

Routed Prelims demand laboratory

Provenance: The six 2019-2022 demands come from the audited local 2018-2023 routing ledger; official keys were unavailable locally. The 2024 Q83 official Set-A key exists locally, but its answer was not recorded in the Core. No option letter is invented below.

Year/Q	Routed demand	Doctrinal resolution	Provenance/limit
2019 Q46	Removal of Supreme Court judges	Article 124(4): proved misbehaviour/incapacity; presidential order after special-majority address by each House. Judges (Inquiry) Act notice: 100 LS or 50 RS; three-member inquiry. Constitution says removal, not impeachment. No SC judge removed.	Official key unavailable locally; resolve statements doctrinally.
2019 Q52	Article 142 and constitutional authority	Complete justice in a cause; supplementary, not supplanting. Cannot violate FRs (<i>Prem Chand Garg</i>) or displace substantive law (<i>SCBA</i>). 2025 assent opinion rejects deemed assent/rigid timelines.	Official key unavailable locally; later doctrine added with date and narrow scope.
2019 Q81	High Court jurisdiction and Supreme Court review	Article 226 is wider in purpose because it reaches FRs and other legal rights; Article 32 is itself an FR but limited to FR enforcement. Tribunal decisions remain under HC review after <i>L. Chandra Kumar</i> .	Official key unavailable locally; "wider" means purpose, not national reach.
2021 Q88	Retired SC judges and HC powers	Article 128 lets CJI, with President's prior consent and the person's consent, request a retired SC judge or qualified retired HC judge to sit in SC. Article 224A governs retired HC judges. Article 124(7) bars former SC judges from pleading/acting before any court or authority.	Official key unavailable locally; distinguish sitting from post-retirement practice.
2022 Q11	Contempt of Courts Act and constitutional courts	Articles 129/215 confer inherent constitutional contempt power; the 1971 Act regulates but cannot curtail it. Civil/criminal contempt are distinct; bona fide public-interest truth defence is recognised.	Official key unavailable locally; statute does not create the entire power.
2022 Q12	Advocates and Bar Council powers	BCI is statutory under Advocates Act, 1961; State Bar Councils enrol; BCI regulates professional conduct/legal education and statutory disciplinary appeals. Court rules regulate practice.	Official key unavailable locally; not a constitutional body.
2024 Q83	Writ of Prohibition	Issued by SC/HC to a lower court or tribunal to stop proceedings without/in excess of jurisdiction; preventive, before decision. Certiorari quashes a completed order. Prohibition is not directed to a legislature or purely private body.	Official Set-A key exists locally, answer not recorded; no option letter inferred.

Original solved Mains practice

M1. Explain how Article 131 makes the Supreme Court a federal umpire while preserving limits on judicial intervention. (10 marks, 150 words)

Demand decoding: “Explain how” requires the party structure, legal-right test, exclusions and institutional purpose.

Evidence chain: Article 131 parties -> legal-right requirement -> exclusive original jurisdiction -> Article 262 water-dispute qualification -> federal verdict.

Model solution

Claim: Article 131 converts the Supreme Court into a neutral federal umpire, but only for defined legal disputes between constitutional governments.

Named evidence: It grants exclusive original jurisdiction where the **Union and one or more States**, opposing Union-State groupings, or **two or more States** dispute the existence or extent of a legal right. A private party therefore cannot create Article 131 jurisdiction merely by joining a State. The pre-Constitution treaty/covenant exception and Parliament's power under **Article 262** to exclude inter-State water disputes preserve specialised constitutional arrangements.

Analysis: Direct apex adjudication prevents a State from being forced into another State's courts and protects the legal distribution of federal power.

Qualification: The Court is not a political mediator. Abstract political disagreement, policy dissatisfaction or a dispute without a legal-right issue falls outside Article 131.

Verdict: Article 131 secures judicial federalism through a narrow legal gateway: authoritative enough to settle Union-State conflict, disciplined enough to avoid governing politics.

Examiner comment: Strong because it links parties, subject matter and exclusions to the reason for exclusive original jurisdiction.

Mark/word discipline: 10 marks; 145-155 words; 3 Article-level units and one limit.

Why this earns marks: The answer defines Article 131 through parties, legal-right content and exclusions, then explains why the narrow gateway serves federalism.

How to improve this answer: Draw the three eligible party combinations, add the legal-right test and Article 262 qualification, and avoid calling the Court a political mediator.

M2. The contempt power protects justice, not judges from criticism. Discuss. (10 marks, 150 words)

Demand decoding: “Discuss” requires constitutional purpose, statutory regulation, free-expression concern and a calibrated conclusion.

Evidence chain: Article 129 -> Contempt of Courts Act, 1971 -> civil/criminal distinction -> truth/fair criticism -> proportionality verdict.

Model solution

Claim: Contempt is legitimate as a shield for adjudication and compliance, not as a personal shield against scrutiny of judges.

Named evidence: **Article 129** makes the Supreme Court a court of record with constitutional contempt power. The **Contempt of Courts Act, 1971** regulates civil contempt, such as wilful disobedience, and criminal contempt affecting the administration of justice. Its framework recognises bona fide public-interest truth as a possible defence.

Analysis: Courts lack an independent enforcement service; deliberate obstruction, intimidation of participants or defiance of orders can destroy the rule of law. Yet public reasoning also makes judicial institutions answerable to criticism.

Qualification: The statute cannot cut down the constitutional power, but Article 19 values require necessity and proportionality. Incorrect, sharp or unpopular criticism is not automatically an interference with justice.

Verdict: Contempt should be used narrowly against real obstruction, preserving both judicial authority and democratic examination of judicial conduct.

Examiner comment: The answer separates institution-protection from reputation-protection and avoids treating statutory power as the source of Article 129.

Mark/word discipline: 10 marks; target 145-155 words; one Article, one Act, two purposes and one speech qualification.

Why this earns marks: It distinguishes the institutional purpose of contempt from personal insulation, integrates statute and free speech, and gives a proportionality-based conclusion.

How to improve this answer: Retain Article 129, civil/criminal distinction, truth or fair-criticism protection and one misuse warning; do not imply criticism is immune when it obstructs justice.

M3. Article 32 is the guaranteed constitutional remedy, yet Article 226 is the wider practical rights jurisdiction. Analyse. (15 marks, 250 words)

Demand decoding: “Analyse” requires resolving the apparent paradox through nature, purpose, reach, discretion and institutional role.

Evidence chain: Article 32 as FR -> Article 226 “any other purpose” -> writ distinctions -> *L. Chandra Kumar* -> access and alternate-remedy qualification.

Model solution

Claim: Article 32 is stronger as a guaranteed Fundamental Right, while Article 226 is wider in subject matter and usually closer to the citizen.

Named evidence: Article 32 guarantees movement of the Supreme Court for enforcement of Fundamental Rights and authorises directions, orders and the five writs. Ambedkar called it the Constitution's “heart and soul”. Article 226 empowers High Courts to enforce Fundamental Rights **and any other legal right or public duty**. Its territorial design is extended by cause-of-action rules, while Article 32 has national reach.

Analysis: The two provisions divide constitutional labour. Article 32 preserves an apex guarantee against rights failure; Article 226 handles both rights and ordinary public-law illegality within the States. Habeas corpus, mandamus, prohibition, certiorari and quo warranto tailor relief to detention, duty, jurisdiction and public office.

Judicial evidence: *L. Chandra Kumar (1997)* treats review under Articles 32 and 226/227 as basic structure and keeps tribunal decisions under High Court scrutiny.

Qualification: Article 226 is discretionary and usually respects adequate alternative remedies, subject to rights, natural-justice and jurisdictional exceptions. Article 32 also requires an actual Fundamental Right claim and is not a general appeal.

Verdict: Article 32 constitutionalises the right to a remedy; Article 226 makes constitutional justice broad, local and operational.

Examiner comment: The answer explains “guaranteed” versus “wider” instead of ranking the courts simplistically.

Mark/word discipline: 15 marks; target 230-250 words; 5 comparative axes, five-writ reference and one case.

Why this earns marks: The answer accurately separates Article 32's guaranteed status from Article 226's wider purpose and converts that distinction into an access-to-justice analysis.

How to improve this answer: Use a compact comparison table covering right, purpose, territorial nexus and discretion; conclude that wider does not mean hierarchically superior.

M4. Article 142 is indispensable for complete justice but dangerous when detached from law. Critically examine. (15 marks, 250 words)

Demand decoding: “Critically examine” requires utility, hard legal limits, current control and a reasoned threshold for use.

Evidence chain: Article 142 text -> remedial utility -> *Prem Chand Garg* -> SCBA -> 2025 assent opinion -> bounded verdict.

Model solution

Claim: Article 142 is indispensable because general law cannot anticipate every remedial gap, but its legitimacy depends on remaining supplementary to constitutional and substantive law.

Utility: The provision lets the Supreme Court make orders necessary for “complete justice” in a cause before it. It can settle complex multi-party disputes, prevent procedural failure and fashion transitional relief where ordinary remedies would leave proven rights ineffective. Article **144** then requires authorities to aid implementation.

Hard limits: In **Prem Chand Garg v. Excise Commissioner (1963)**, the Court held that Article 142 cannot operate contrary to Fundamental Rights. In **Supreme Court Bar Association v. Union of India (1998)**, it described the power as supplementary and refused to let it supplant substantive law governing professional discipline.

Current qualification: The **20 November 2025 Article 143 opinion, 2025 INSC 1333**, rejected rigid assent timelines and deemed assent through Article 142 while retaining review of prolonged unexplained inaction. Being advisory, it did not overrule the April 2025 judgment and should not be generalised.

Risk: Vague equity can become policy-making, reduce predictability and bypass institutions with evidence and democratic competence.

Verdict: Use Article 142 to complete lawful adjudication, never to create freestanding jurisdiction or an alternative legal code.

Examiner comment: The answer uses the exact “supplement, not supplant” boundary and treats the 2025 opinion narrowly.

Mark/word discipline: 15 marks; target 230-250 words; 2 benefits, 3 limits and one current control.

Why this earns marks: It treats Article 142 as remedial power, anchors both constitutional and statutory limits, and gives a calibrated complete-justice test.

How to improve this answer: Keep cause-or-matter nexus, Prem Chand Garg and SCBA; remove illustrative uses before removing the two hard limits.

M5. Retired judges can add capacity and expertise, but post-retirement deployment can affect perceptions of independence. Examine. (15 marks, 250 words)

Demand decoding: “Examine” requires distinguishing Article 128 sitting from other appointments, then balancing capacity against incentives.

Evidence chain: Articles 126-128 continuity -> Article 124(7) practice bar -> capacity benefit -> perception risk -> design reforms.

Model solution

Claim: Retired-judge deployment is constitutionally useful when it fills a defined adjudicatory need, but opaque post-retirement appointments can create an appearance of future reward.

Named evidence: Article **128** permits the CJI, with the President's prior consent and the retired judge's consent, to request a retired Supreme Court judge or a qualified retired High Court judge to sit and act in the Supreme Court. Article **127** separately provides ad hoc judges, while Article **126** provides an acting CJI. Article **124(7)** bars a former Supreme Court judge from pleading or acting before any court or authority in India.

Analysis: A retired judge can add subject expertise, bench strength and continuity without lowering qualifications. The constitutional request-and-consent design preserves formal safeguards.

Qualification: Article 124(7) does not prohibit every tribunal, commission, arbitration or public role. However, appointments controlled by a frequent litigant immediately after retirement may create a perception that future office influenced present adjudication. Retired deployment cannot replace regular vacancies.

Reform: Use transparent eligibility, cooling-off where appropriate, independent selection, fixed terms and published reasons; reserve Article 128 for genuine judicial need.

Verdict: Expertise is valuable, but independence includes public confidence that office is neither retrospective reward nor prospective inducement.

Examiner comment: The answer distinguishes constitutional sitting from the wider post-retirement debate and proposes proportionate safeguards.

Mark/word discipline: 15 marks; target 230-250 words; 4 Articles, 2 benefits, 3 risks and 4 reforms.

Why this earns marks: The answer distinguishes Articles 128 and 124(7), identifies capacity gains and addresses independence risks without inventing a total post-retirement ban.

How to improve this answer: Retain consent requirements, the practice bar and two safeguards-cooling-off and transparent selection; distinguish judicial sitting from executive appointment.

M6. Judicial review preserves constitutional supremacy, but its legitimacy depends on doctrinal and institutional restraint. Evaluate with reference to amendments, the Ninth Schedule and tribunals. (20 marks, 250 words)

Demand decoding: "Evaluate" requires three doctrinal applications, criticism, limiting principles and a degree-based judgment.

Evidence chain: ordinary-law review -> *Kesavananda/Minerva* -> *Waman Rao/Coelho* -> *L. Chandra Kumar/Madras Bar Association* -> legitimacy controls.

Model solution

Claim: Judicial review is the enforcement mechanism of constitutional supremacy, but it remains legitimate only when the Court identifies a constitutional standard rather than replacing policy choice with preference.

Amendments: *Kesavananda Bharati (1973)* permits wide Article 368 amendment but bars damage or destruction of basic structure. *Minerva Mills (1980)* protects limited amending power, judicial review and the Fundamental Rights-Directive Principles balance. This prevents an elected super-majority from abolishing future democracy or independent adjudication.

Ninth Schedule: *Waman Rao** uses **24 April 1973** as the cut-off. *I.R. Coelho (2007)* asks whether a later insertion's impact on Part III damages an underlying basic feature. Reviewability is not automatic invalidity.

Tribunals: *L. Chandra Kumar (1997)* preserves Articles 226/227 and 32 review, making tribunals supplementary. The *Madras Bar Association** line tests whether appointments and tenure preserve separation of powers where judicial work is transferred.

Criticism: Basic structure is not textually enumerated; open-ended review may become counter-majoritarian or uncertain. Tribunal review can add appellate delay.

Qualification: Ordinary laws must be tied to competence, Part III or another express constitutional provision; courts should demand a clear constitutional hook, exact ratio and proportionate remedy.

Verdict: Review is indispensable, not supreme: its legitimacy rises when doctrine is text-linked, bench-disciplined and institutionally modest.

Examiner comment: The answer evaluates one principle across three fields and supplies limiting rules instead of a generic overreach paragraph.

Mark/word discipline: 20 marks; target 245-260 words; 7 named cases/provisions, 3 applications and 3 legitimacy controls.

Why this earns marks: It integrates amendment review, Ninth Schedule impact review and tribunal supervision into one constitutional-supremacy argument with restraint.

How to improve this answer: Organise by three review objects-amendments, immunised laws and tribunal decisions-then attach one case and one precise limit to each.

M7. The Supreme Court's constitutional authority is strong, but access and implementation determine whether that authority becomes justice. Critically examine and suggest reforms. (20 marks, 250 words)

Demand decoding: Test legal authority against delivery constraints; reforms must address docket, access, compliance and accountability.

Evidence chain: Articles 32/131/136/141/142 -> PIL/basic structure -> Article 144 dependency -> pendency/access chain -> institutional reforms.

Model solution

Claim: The Supreme Court is among the world's strongest constitutional courts in legal authority, yet constitutional justice depends on affordable access, timely adjudication and executive compliance.

Authority: Article 32 guarantees rights remedies; Article 131 makes the Court a federal umpire; Article 136 supplies exceptional appellate correction. Articles 141 and 142 combine nationwide precedent and complete-justice relief, while **Kesavananda Bharati*** permits review of constitutional amendments. PIL relaxed standing and enabled structural-rights remedies.

Delivery constraints: The Court sits principally in Delhi; legal cost, language and digital exclusion affect access. A large SLP docket can crowd out Constitution Benches. Vacancies, government litigation, adjournments and uneven registry capacity produce delay. Article 144 reveals the implementation dependency: the Court has neither purse nor an independent enforcement bureaucracy. Collegium opacity and thin graded accountability can weaken legitimacy.

Qualification: Strong High Courts, legal services, tribunals and mediation are not rivals but necessary parts of the integrated system. Technology alone cannot replace judges or fair process.

Reforms: publish a predictable Constitution Bench calendar; use disciplined SLP admission and case management; reduce routine government appeals; strengthen High Courts and legal aid; expand assisted e-filing, translation and accessible judgments; create a collegium secretariat and fair complaints framework; track compliance with clear exit points.

Verdict: Authority becomes justice only when institutional design converts a powerful judgment into a timely, intelligible and implemented remedy.

Examiner comment: The answer moves from constitutional power to delivery mechanisms and prioritises reforms rather than listing technology.

Mark/word discipline: 20 marks; target 245-260 words; 6 authority units, 6 constraints and 7 reform actions.

Why this earns marks: The authority-delivery chain answers the question causally and matches pendency, digital access and implementation reforms to distinct bottlenecks.

How to improve this answer: Use authority -> access -> hearing -> reasoned order -> implementation as the spine; cite only dated official data and pair each diagnosed deficit with one feasible reform.